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CIVILIAN CONDUCT AND RESPONSIBILITY

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This publication implements Department of the Air Force (DAF) Policy Directive (DAFPD) 36-1, *Appropriated Funds Civilian Management and Administration.* It provides guidance and procedures on civilian employee standards of conduct and individual responsibility throughout the DAF. It applies to United States Code (USC) Title 5 civilian employees, Title 10, Defense Civilian Intelligence Personnel System or Cyber Excepted Service employees, and Defense Intelligence Senior Executive Service and Senior Leader employees of both the United States Air Force and the United States Space Force. It applies to Air Force Reserve and Air National Guard; however, it does not apply to Title 32 Air National Guard Technicians. Where appropriate this instruction references the civilian standards of conduct specified in Department of Defense (DoD) 5500.07-R, *Joint Ethics Regulation*. In the event of a conflict between this instruction and the DoD 5500.07-R, the guidance of the DoD 5500.07-R is controlling. In collaboration with the Deputy Chief of Space Operations for Human Capital (SF/S1), the Chief of Air Force Reserve (AF/RE) and the Director of the Air National Guard (NGB/CF), the Deputy Chief of Staff for Manpower, Personnel and Services (AF/A1) develops personnel policy for civilian conduct and responsibility. This DAF publication may be supplemented at any level; major command (or equivalent) and field command level supplements must be approved by the Human Resource Management Strategic Board (HSB) prior to certification and approval. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) listed above using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate chain of command. The authorities to waive requirements in this publication are

identified with a Tier ("**T-0, T-1, T-2, T-3**") number following the compliance statement. See DAFMAN 90-161, *Publishing Processes and Procedures,* for a description of the authorities associated with the Tier numbers. Submit requests for waivers via DAF Form 679, *Department of the Air Force Publication Compliance Item Waiver Request/Approval*, through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322*, Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This interim change revises DAFI 36-147 by deleting certain language to be in compliance with with Executive Order (E.O.) 14151, *Ending Radical and Wasteful Government DEI Programs and Preferencing*, dated 20 January 2025, and E.O. 14168, *Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government*. **A margin bar (|) indicates newly revised material**.

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Chapter 1

CIVILIAN CONDUCT AND RESPONSIBILITY

1.1. Overview. Maintaining a productive work environment, in which management and employees comply with standards of conduct and responsibilities, is essential to the effective functioning of the DAF and accomplishment of its national security mission.

1.2. Policy Guidance. This instruction provides guidance to implement that policy and directs that civilian management officials, supervisors, and employees will perform official duties lawfully and comply with ethical standards of conduct.

1.2.1. An employee's violation of any provision in this instruction may be cause for disciplinary action, which may be in addition to any penalty prescribed by law.

1.2.2. The DAF will ensure civilian conduct and responsibilities are communicated and prescribed without unlawful discrimination, or preferential treatment, because of race, color, national origin, age (40 or older), religion, sex, pregnancy, disability, genetic information, or reprisal for previous Equal Employment Opportunity Commission (EEOC) activity. **(T-0)**

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Director, Civilian Force Management Directorate (AF/A1C).

2.1.1. Under the authority and direction of the AF/A1, directs development and implementation of the civilian standards of conduct for areas not covered in the DoD 5500.07-R.

2.1.2. Provides policy guidance on provisions of this instruction.

2.1.3. Monitors programs and assesses implementation to ensure compliance with this instruction.

2.2. Air Force Personnel Center, Directorate of Personnel Programs (AFPC/DPP).

2.2.1. Provides operational guidance, training, and assistance to the Civilian Personnel Section (CPS) specialist as it pertains to civilian conduct-based transactions.

2.2.2. Provides current operational oversight, instructions, and training to Major or Field Command management officials and CPSs specialist regarding provisions of this instruction.

2.3. Major Commands, Field Commands, Direct Reporting Units , Field Operating Agencies, and Combatant Commands.

2.3.1. Provide guidance and support to employees and subordinate CPS pertaining to civilian conduct-based transactions.

2.3.2. Inform AF/A1C of status of investigations, grievances, or cases filed with third parties.

2.3.3. Monitor and track programs for compliance with this instruction.

2.3.4. This section only applies to Combatant Commands with DAF personnel.

2.4. Civilian Personnel Section (CPS).

2.4.1. Advise and train managers and employees on provisions of this instruction.

2.4.2. Provide employees procedural guidance on administrative actions consistent with this instruction.

2.4.3. Provide supervisors and managers with employee management relations advisory services.

2.4.4. Ensure that local training for all civilian personnel specialists, attorneys, and management officials also covers civilian conduct and responsibilities.

2.4.5. Provide a copy of this instruction, or provide a current web link, to new employees during in-processing.

2.5. Judge Advocate. Advise and train management officials and employees on compliance with provisions of the DoD 5500.07-R.

2.6. Installation Commander or civilian equivalent.

2.6.1. Establish workplace policies and procedures consistent with the DoD 5500.07-R and this instruction.

2.6.2. Ensure employees are kept informed of standards of conduct and responsibilities. Provide direction for adhering to standards.

2.6.3. Set an example for appropriate workplace conduct consistent with this instruction.

2.6.4. Take timely and appropriate actions to implement the provisions of this instruction and related DAF policy regarding employee conduct.

2.6.5. Identify an office and establish a process to receive, investigate, and take appropriate actions concerning allegations of harassment not covered by Title VII of the *Civil Rights Act of 1964* (Pub. L. 88-352, 42 U.S.C. §§ 2000e – 2000e17). The Equal Employment Opportunity Office is not permitted to be involved in harassment investigations that are not covered by Title VII.

2.7. Supervisor and Management Official.

2.7.1. The DAF depends on a large civilian workforce to successfully accomplish its missions. Supervisors and management officials are expected to judiciously and timely accomplish duties in managing civilian employees.

2.7.2. Supervisors are accountable for the following:

2.7.2.1. Complying with civilian personnel laws, regulations, and negotiated labor agreements.

2.7.2.2. Treating employees with respect and consideration.

2.7.2.3. Creating a work environment free from harassment.

2.7.2.4. Complying with attendance, leave, and overtime approval procedures.

2.7.2.5. Completing civilian personnel management actions without unnecessary delay.

2.7.2.6. Constructively counseling and correcting employees and motivating employees to improve performance and conduct.

2.7.2.7. Attending required supervisory training and ensuring mandatory training requirements are met.

2.8. Employees. Perform official duties lawfully and comply with prescribed standards of conduct in all official matters. Per Title 5 Code of Federal Regulations (CFR) Part 2635, *Standards of Ethical Conduct for Employees of the Executive Branch*, all employees are expected to:

2.8.1. Discharge assigned duties conscientiously and effectively.

2.8.2. Be present for duty unless authorized to be absent.

2.8.3. Follow DAF instructions and comply in a timely manner with proper instructions or orders.

2.8.4. Confer with management (starting with immediate supervisor) to discuss matters/concerns, obtain information, or solve problems that relate to the job.

2.8.4.1. This does not limit the employee's right to contact their installation equal opportunity office to address equal employment opportunity (EEO) matters as described in DAFI 36-2710, *Equal Opportunity Program,* without first going through supervisors.

2.8.4.2. This also does not limit the right of employees to contact the Inspector General to report fraud, waste, and abuse, or to the CPSs or union representative to file grievances or complaints, without first going through supervisors.

2.8.5. Comply with safety and health standards set for the job environment.

2.8.6. Will not knowingly make unauthorized commitments or promises of any kind purporting to bind the Government. **(T-0)**

2.8.7. Treat individuals with respect and consideration.

2.8.8. Adhere to the United States Air Force Core Values of "*Integrity First, Service Before Self, and Excellence in All We Do*" and the United States Space Force Core Values of "*Character, Connection, Commitment, and Courage,"* as appropriate.

2.8.9. Wingman Intervention Training. DAF civilian personnel are expected to complete introductory, basic level, sexual assault prevention knowledge and skill, and associated DoD and DAF core values.

2.8.10. Responsible for completing all mandatory training requirements, in accordance with DAFI 36-2670, *Total Force Development*.

2.8.11. Report incidents they perceive as harassment, reprisal or retaliation, which includes those that they have personally experienced or witnessed, to the supervisor of the offending employee (if known), their supervisor, local civilian personnel flight, the Equal Employment Opportunity Office, the Inspector General, or command designee.

Chapter 3

STANDARDS OF CONDUCT

3.1. Furnishing Testimony.

3.1.1. Employees may be requested to provide testimony or information to various administrative bodies such as the Department of the Air Force or Office of the Secretary of Defense. If an employee believes he or she may be subject to disciplinary or adverse action, he or she may request a representative.

3.1.2. Refusal to reply to questions during an investigation may be the basis for disciplinary action. The employee must be warned that a failure to provide answers may subject them to discipline, including the possibility of removal in appropriate cases, and that any statements can be used against them in a criminal prosecution. Employees who lie, or otherwise affirmatively mislead an investigation, may be subject to discipline, including removal, when appropriate. **(T-0)**

3.1.3. Under no circumstances should an employee be questioned by management officials concerning a suspected criminal offense without the prior approval of the servicing legal office. Employees may be questioned by proper law enforcement officials, such as Office of Special Investigation agents or Federal Bureau of Investigation agents. The servicing legal office is responsible for ensuring that any information or allegation relating to a possible violation of federal criminal laws is reported to the office of the United States Attorney for the district in which the crime allegedly occurred before the employee is questioned. The United States Attorney's Office must approve, in advance, all requests to compel the testimony of employees suspected of criminal offenses during administrative hearings or investigations. **(T-0)**

3.2. Participating in Public or Civic Activities.

3.2.1. Employees may participate in lawful political demonstrations, petitions, speeches, non=Federal entities (including installation-recognized private organizations), and similar activities in their private capacity when not in a duty status as the exercise of their constitutional rights of speech, peaceable assembly, and petition to Congress. Such participation is subject to limitations in accordance with the Hatch Act.

3.2.2. If an employee's participation in such activities interferes with the mission of the armed forces or interferes with the duty performance of the employee, other employees or military members, the employee may be subjected to disciplinary action. Employees may also be subject to disciplinary action, including removal, if convicted of inciting or taking part in a riot, civil disorder, or any group activity that results in damage to property or injury to people. Refer to DAFI 36-148, *Discipline and Adverse Actions of Civilian Employees.*

3.3. Indebtedness.

3.3.1. An indebtedness is a just financial obligation acknowledged by the employee or reduced to judgment by a court or other proper authority. Per 5 CFR Part 2635, employees must satisfy, in good faith, their just financial obligations, especially those such as federal, state, or local taxes that are imposed by law. **(T-0)** In the event of a dispute between an employee and an alleged creditor, the DAF does not determine the validity or amount of the disputed debt or collect debts on the alleged creditor's behalf. However, where the validity of a private debt is

established by court order or admitted, a failure to satisfy an obligation can result in disciplinary action (See DAFI 36-148).

3.3.2. The CPS should establish procedures for responding to indebtedness complaints from creditors. A creditor is a person or company to whom a debt is owed. These procedures should not apply to debt collectors, persons, or companies who regularly collect or attempt to collect debts owed to another. Requests from creditors should include information about previous direct attempts to collect the debt from the employee, and proof that the employee has been informed of his/her responsibility. The creditor is entitled to a courteous response that clearly states "the Department of the Air Force does not collect or determine the validity of debts". The response must neither admit or imply an admission of an employee's liability, nor report any action taken against an employee as a result of the complaint, unless authorized by law. **(T-3)**

3.3.3. When a DAF employee with a debt has been reassigned to another DAF activity and a creditor seeks locator assistance, the losing CPS must either furnish the current duty address to the requestor, or send the correspondence to the gaining CPS. In cases where a government agency seeks an address for law enforcement purposes (i.e., a child support enforcement agency, attempting to enforce a child support order), the CPS may provide the last known mailing address of a current or former employee. However, in no instance will the CPS or the DAF act as an intermediary in private matters that concern current or former employees. **(T-0)**

3.4. Canvassing, Soliciting, and Peddling. Canvassing, soliciting, or peddling among employees during working hours or in federal facilities is not allowed except for officially approved events, e.g. Combined Federal Campaign. However, this does not preclude office collections for fellow workers or passive activities such as "For Sale" notices on unit bulletin boards. This restriction does not apply to conducting labor organization membership drives during lunch periods or after duty hours. For other restrictions that involve commercial solicitation and sales to subordinates, refer to the servicing legal office.

3.5. Gambling. Gambling is prohibited on federally owned or leased property or while in a duty status regardless of location. Gambling includes participation in "office pools" and the joint purchase of lottery tickets by employees. Refer to the DoD 5500.07-R for specific exemptions regarding law enforcement activities, private legal wagers conducted entirely within assigned government quarters, and case-by-case exemptions approved by the Secretary of the Air Force (DoD 5500.07-R, Paragraph 2-302a(2)).

3.6. Outside Employment. All DAF civilian employees must report outside business activity or compensation from outside employment to their supervisors. **(T-1)** This is in addition to the requirement that certain DAF personnel (financial disclosure filers) must receive prior supervisory approval to engage in business activity or compensation from outside employment with prohibited sources in accordance with 5 CFR Section 3601.107, *Prior Approval for Outside Employment and Business Activities*. **(T-3)** DAF financial disclosure filers must request approval of outside activities using DAF Form 3902, *Application and Approval for Off-Duty Employment*. **(T-0)**

3.6.1. Approval will be granted unless a determination is made that the business activity or compensated outside employment is expected to involve conduct prohibited by statute or regulation or that the outside employment or business activity might detract from readiness or pose a security risk. **(T-3)**

3.6.2. Approval to participate in outside employment or business activity will be documented by supervisors on the Supervisor's Employee Brief **(T-1)** consistent with the requirements of DoD 5500.07-R, Paragraph 2-206. Employees should address specific questions to their local ethics counselor at their servicing legal office.

3.7. Misuse of Government Property. Employees may not use government equipment, personnel, or other resources for personal benefit or benefit of friends or relatives unless specifically authorized. This includes resources such as computers, copiers, facsimile machines, office supplies, telephones, email, or vehicles. Government property is for official use and limited authorized personal use only. Limited personal use must be of reasonable duration and frequency that have been approved by the supervisor and do not adversely affect performance of official duties, overburden systems or reflect adversely on the DAF or the DoD in accordance with 5 CFR § 2635.702, *Use of Public Office for Private Gain*. Misuse of DAF resources is misconduct, which may result in disciplinary action and further guidance on this can be found in DAFI 36-148.

3.8. Supervisor and Manager Official Conduct. Supervisors failing to comply with DAF standards of conduct and responsibilities adversely reflect upon the integrity of the management process and may be reassigned to non-supervisory positions under 5 CFR Part 752, *Adverse Actions*, for the efficiency of the service. Follow procedures established in DAFI 36-148.

Chapter 4

DRESS, APPEARANCE, AND RELATIONSHIPS

4.1. Professional Public Image. Employees are expected to comply with reasonable dress and grooming standards based on comfort, productivity, health, safety, and type of position occupied. Due to the diversity of work functions and locations, appropriate dress standards may vary significantly.

4.2. Civilian Dress. Employee attire will be in good repair, and should not be considered offensive, disruptive, or unsafe. Commanders or civilian equivalents may establish and publish local civilian dress standards after consultation and review by servicing legal and civilian personnel (labor) offices. Such standards should be consistent with the provisions of **paragraph 4.1**, above. Management disagreement with current trends in styles, modes of dress, and grooming is not an adequate criterion for establishing local civilian dress standards. **(T-3)**

4.3. Civilian Uniform Wear. Military grooming and appearance standards do not apply to civilian employees. However, employees who wear standard uniforms, such as those prescribed in AFI 36-128, *Pay Setting and Allowances,* or medical or food service personnel furnished uniforms may be expected to comply with grooming and appearance standards for employees in similar occupations employed by other federal, state, or municipal governments. Air Reserve Technicians will adhere to the requirements prescribed in DAFI 36-2903, *Dress and Personal Appearance of United States Air Force and United States Space Force Personnel*, when wearing the military uniform in civilian status. **(T-0)**

4.4. Relationships. While personal relationships between DAF employees or between DAF employees and military members are normally matters of individual choice and judgment, they become matters of official concern when they violate existing law or impede the efficiency of the service. When unprofessional relationships impede the efficiency of the service or adversely affect the mission, appropriate measures and/or disciplinary action should be taken. Further guidance can be found in AFI 36-2909, *Air Force Professional Relationships and Conduct,* DAFI 34-301, *Department of the Air Force Morale, Welfare, and Recreation (MWR) Programs and Use Eligibility*, and DAFI 36-148. (AFI 36-2909, is the authoritative policy concerning professional relationships.)

4.4.1. Types of relationships. (See AFI 36-2909).

4.4.1.1. Professional relationships are those that contribute to the effective operation of the DAF, thus promoting the efficiency of the service. The DAF encourages personnel to communicate freely with their superiors regarding their careers, performance, duties, and missions. Such communications enhance morale, further the DAF mission, and preserve the proper respect between employees, supervisors, and managers. Participation by employees of all grades in organizational activities and unit-sponsored events enhances morale and unit cohesion.

4.4.1.2. Unprofessional relationships are those, whether pursued on or off-duty, which detract from the authority of supervisors and managers or result in, or reasonably create the appearance of, favoritism, misuse of office or position, or the abandonment of organizational goals, and adversely affect the efficiency of the service. Unprofessional

relationships can exist between civilian employees, military officers, enlisted members, and contractors.

4.4.2. Guidelines for Avoiding Unprofessional Relationships. Romantic and other familiar relationships present a high risk for being or developing into unprofessional relationships. While some personal relationships are not in and of themselves unprofessional, they may be or become unprofessional when other facts or circumstances are taken into consideration. (See AFI 36-2909)

4.4.2.1. Relationships within the Organization. Overly familiar relationships between individuals where one person exercises supervisory authority over the other can easily be or become unprofessional. The danger of abuse of authority and perception of favoritism is always present. The ability of a supervisor or manager to influence, directly or indirectly, assignments, promotions, training opportunities, awards, and other employment opportunities places both the supervisor or manager and the subordinate in a vulnerable position.

4.4.2.2. Dating and Close Friendships. Dating and courtship between a supervisor or manager and an employee under their supervision invariably raises the perception of favoritism. Such relationships can adversely affect morale and impede the efficiency of the service. (See AFI 36-2909, paragraph 2.3.3 for additional details.)

4.4.2.3. Nepotism. DAF employees may not appoint, employ, promote, advance, or advocate for appointment, employment, promotion, or advancement, in or to a DAF civilian position or a position over which he or she exercises jurisdiction or control any individual who is a relative of the employee. An individual may not be appointed, employed, promoted, or advanced in or to a DAF civilian position if such appointment, employment, promotion, or advancement has been advocated by an employee, serving in or exercising jurisdiction or control over the DAF activity, who is a relative of the individual. Additionally, relatives may not directly supervise each other. **(T-0)**

4.4.2.4. Other Relationships. Other relationships, not specifically addressed above or in AFI 36-2909, and depending on the circumstances that can lead to actual or perceived favoritism or preferential treatment must be avoided. (See DoD 5500.07-R, Paragraph 5-409). **(T-0)**

4.4.3. Individual Responsibility to Maintain Professional Relationships. All DAF employees share the responsibility for maintaining professional relationships. However, supervisors and managers in personal relationships bear primary responsibility for maintaining the professionalism of their relationship. Supervisors and managers are in leadership positions which require the maturity and judgment to avoid relationships which impede the efficiency of the service or adversely affect mission performance. (See AFI 36-2909).

4.4.4. Actions in Response to Unprofessional Relationships. When unprofessional relationships impede the efficiency of the service or adversely affect the mission, appropriate corrective measures and/or disciplinary action should be taken and further guidance on this may be found in DAFI 36-148.

4.4.5. Employees may not engage in direct-reporting personal relationships with spouses and relatives as to avoid the appearance of favoritism or a conflict of interest. **(T-3)** (See AFI 36-2909).

Chapter 5

VIOLENCE IN THE WORKPLACE

5.1. Violence in the Workplace. The DAF is committed to working with employees to maintain a work environment free from violence, threats of violence, harassment, intimidation, and other disruptive behavior. All employees are responsible for promoting a safe work environment.

5.1.1. Workplace violence can be any act of physical violence or threat of physical violence, including harassment, intimidation, or other threatening, disruptive behavior.

5.1.2. Workplace violence can affect or involve employees, visitors, contractors, and other non-federal employees.

5.1.3. Workplace violence can be inflicted by an abusive employee, manager, supervisor, co-worker, customer, family member, or even total stranger.

5.1.4. Whatever the cause or whoever the perpetrator, workplace violence is not to be tolerated.

5.2. Commanders.

5.2.1. Develop local workplace violence awareness and response plans working groups.

5.2.2. Members of the working group should include representatives from management, employee relations, employee assistance program managers, servicing/base legal office, law enforcement, safety, medical/health department, equal employment opportunity, public affairs, and other appropriate offices and organizations.

5.2.3. Ensure employees are aware of plans.

5.3. Supervisors. Supervisors play a key role in recognizing potentially violent situations and attempting to mitigate them. Supervisors are expected to manage work centers in a manner that promotes good order supported by workplace violence awareness and response plans.

5.3.1. When a supervisor becomes aware of a situation or behavior indicating potential violence they must take all threats of violence seriously, assess the situation and, consult with (including but not limited to) Security Forces, the CPS, the legal office, and base medical staff, as appropriate, take steps to reduce the risk of violence, and inform the next level management official of potential or actual workplace violence. **(T-0)** Supervisors are responsible to:

5.3.1.1. Inform employees of workplace violence policies, plans, and procedures.

5.3.1.2. Ensure employees know specific procedures for dealing with workplace threats and emergencies, and how to contact police, fire, and other safety and security officials.

5.4. Employee. Employees contribute to maintaining a safe workplace through observation and by reporting potential concerns to their supervisor or other available authority in their work location. Employees should:

5.4.1. Be familiar with guidance regarding workplace violence.

5.4.2. Be responsible for securing their own workplace.

5.4.3. Be responsible for questioning and/or reporting strangers/unauthorized personnel to supervisory authority.

5.4.4. Be aware of any workplace threats, physical or verbal, and report such to supervisory authority.

5.4.5. Be familiar with local procedures for dealing with workplace threats and emergencies.

5.4.6. Take all threats seriously.

5.5. Awareness of surroundings is key to taking responsive action. A workplace violence response plan should address key situations that can give rise to violence or potential violence. Violence, threats, harassment, intimidation, and other disruptive behavior cannot be tolerated in the workplace; all reports of incidents will be taken seriously and dealt with appropriately. **(T-3)** Those who engage in violent behavior may be:

5.5.1. Immediately removed from the premises.

5.5.2. Denied re-entry pending completion of an appropriate investigation. (See **paragraph 7.2**.).

5.5.3. Subject to removal from federal service, criminal prosecution, or both.

Chapter 6

RELATED DIRECTIVES

6.1. Privacy. AFI 33-332, *Air Force Privacy and Civil Liberties Programs*. Employees who have access to systems of records, or who are involved in developing, operating, or maintaining personnel record systems must be informed of and comply with all requirements to protect individual privacy. **(T-0)**

6.2. Discipline. DAFI 36-148 prescribes guidance and procedures to use in considering disciplinary action for violations of this instruction or other prescribed standards of conduct.

6.3. Drug and Alcohol Abuse. AFMAN 44-198, *Air Force Civilian Drug Demand Reduction Program,* addresses civilian substance abuse prevention and control. Civilian employees of the DAF must refrain from using illegal drugs whether on or off duty. (**T-0)**

6.4. Ethical Conduct. DoD 5500.07-R characterizes standards of ethical conduct and ethics guidance including direction in the areas of financial and employment disclosure systems, post-employment rules, gifts and gratuities, and outside activities. Civilian employees should become familiar with the provisions of the regulation to be sure their official activities and personal relationships with outside organizations and outside employment comply with its standards. Employees with questions concerning the Regulation should seek guidance from an appropriate DAF ethics counselor.

6.5. Use of Government-Issued Credit Card. DAFI 64-117, *Government Purchase Card Program,* governs the use of credit cards issued for use in conjunction with official travel. This DAF instruction directs each cardholder to pay all valid charges when billed. It also states the card is to be used only for cash advances prior to or during travel and/or for expenses incident to and incurred during official travel with the Government. Use of the card for personal purchases will subject the holder to appropriate disciplinary action as these types of purchases are not authorized and are a violation of the credit card contract. **(T-0)**

6.6. Use of Government-Owned Computers. Government computers are for official use and limited authorized personal use only. Unauthorized use and other violations of DAF information systems policies may result in immediate suspension of access to unclassified and classified systems and disciplinary action.

6.7. Use of Government Vehicles. AFI 24-301, *Ground Transportation*, prescribes controls and requirements for use of government vehicles. All civilian employees need to take appropriate measures to prevent misuse, abuse, or willful acts/omissions that could cause damage to government vehicles. Directing personnel to violate official use restrictions is an unlawful order and should be reported to command or other appropriate agencies. Civilian employees must not follow an unlawful order to violate official use restrictions. **(T-0)**

6.8. Unlawful Discrimination and Harassment. DAFI 36-2710 implements federal law and Equal Employment Opportunity Commission regulations that prohibit harassment, sexual harassment, and unlawful discrimination because of race, color, national origin, age (40 or older), religion, sex, pregnancy, disability, genetic information, or reprisal for previous Equal Employment Opportunity Commission (EEOC) activity. DAFI 36-2710 provides guidance on the equal employment opportunity (EEO) Complaints process for civilian employees experiencing

unlawful discrimination and harassment allegations based on an identified protected category. **(T-0)**

6.9. Fraud, Waste, and Abuse. DAFI 90-301, *Inspector General Complaints Resolution*, provides instructions for reporting Fraud, Waste, and Abuse. Any individual aware of Fraud, Waste, and Abuse or lack of controls that could permit resources to be wasted or diverted should report the situation through appropriate channels. Employees may choose to remain anonymous; however, if they do so, it should be noted they will not then be contacted regarding the complaint resolution outcome.

6.10. Other Provisions on Employee Conduct. All restrictions on employee conduct cannot be specified in a DAF instruction. Therefore, supervisors, managers, and employees who have specific questions regarding standards of conduct which are not covered in this DAF instruction or the publications referenced above, should consult the commander, CPS, or the servicing legal office for assistance.

Chapter 7

HARASSMENT PREVENTION AND RESPONSES FOR DAF EMPLOYEES

7.1. The DAFis committed to ensuring all employees experience a workplace free of all forms of harassment. Harassment of any kind is not tolerated. All allegations of harassment are taken seriously. Supervisors and managers are obligated to initiate immediate and effective action to promptly address unlawful harassing behavior in the workplace and to prevent unlawful harassing behavior from continuing. To that end, all reports of harassment will be promptly reviewed followed by swift and appropriate action. Further guidance on this can be found in DoDI 1020.04, *Harassment Prevention and Responses for DoD Civilian Employees*.

7.1.1. Unlawful harassment is unwelcome conduct, because of race, color, national origin, age (40 or older), religion, sex, pregnancy, disability, genetic information, or reprisal for previous Equal Employment Opportunity Commission (EEOC) activity, that unreasonably interferes with an individual's work performance/environment; results in a tangible employment action; or is severe or pervasive enough to create a hostile work environment. (DAFI 36-2710, DoDI 1020.03, *Harassment Prevention and Response in the Armed Forces*, and DoDI 1020.04, are controlling publications regarding this topic.)

7.1.2. Examples of harassing conduct prohibited by this policy whether they occur in person, online or by email, on social media, or in any other manner include, but are not limited to, the following:

7.1.2.1. Offensive jokes, comments, objects, or pictures;

7.1.2.2. Unwelcome questions about a person's identity because of race, color, national origin, age (40 or older), religion, sex, pregnancy, disability, genetic information, or reprisal for previous Equal Employment Opportunity Commission (EEOC) activity;

7.1.2.3. Undue and unwelcome attention;

7.1.2.4. Ridicule or mockery;

7.1.2.5. Insults or put-downs;

7.1.2.6. Unwelcome touching or contact;

7.1.2.7. Slurs or epithets;

7.1.2.8. Threats or other forms of intimidation; or

7.1.2.9. Physical or sexual assault.

7.2. The DAF prohibits harassment that is unwelcome or offensive to a reasonable person and that interferes with work performance or creates an intimidating, hostile or offensive work environment. Prohibited harassment behaviors are described in DoDI 1020.04. The DAF also will not tolerate adverse treatment of employees because they report harassing conduct or provide information related to such complaints.

7.2.1. The DAF EO Program handles harassment allegations based on race, color, national origin, age (40 or older), religion, sex, pregnancy, disability, genetic information, or reprisal for previous Equal Employment Opportunity Commission (EEOC) activity. All other prohibited harassment behaviors are addressed in accordance with this publication. The DAF

does not tolerate reprisal or retaliation against any applicant, employee, or former employee for opposing harassing conduct, for reporting harassing conduct, or for assisting in any inquiry, investigation, lawsuit, or other proceeding about a report of harassing conduct.

7.2.2. The DAF will take immediate and appropriate action when it is determined that harassment has occurred. **(T-0)**

7.3. The intent of this policy is to address all unwelcome conduct before it becomes severe or pervasive, or escalates to the level of unlawful harassment.

7.4. The most effective way to prevent and eliminate harassing conduct in the workplace is to address it as misconduct as defined in DAFI 36-148.

7.5. Employees are subject to disciplinary action, up to and including removal, for engaging in harassing conduct while in the workplace or in any work-related situation, including while on official travel.

7.5.1. Off-duty misconduct also may subject an employee to potential discipline if the misconduct is likely to have an adverse effect on the DAF (e.g., harassing a co-worker, visitor, contractor, or volunteer during off-duty hours).

7.5.2. Harassing conduct can occur in person, through phone calls or in writing, or through the use of social media, or other forms of technology.

7.5.3. It is appropriate to differentiate harassment from management's legitimate supervision of employee time, attendance, telework, conduct, and work performance. Negative feedback from a supervisor, while unpleasant, is not typically considered harassment. Similarly, an occasional misunderstanding between employees due to differences in how they communicate is not necessarily harassment, even if it makes one or both employees uncomfortable.

7.6. Any employee who is subjected to harassing conduct is encouraged to inform the person(s) responsible for the conduct that it is unwelcome and offensive and request that it cease. Employees who witness or believe to be harassed should immediately report what they observed or experienced.

7.7. Reporting Harassment, Reprisal or Retaliation. Employees who believe that they have been the subject of harassment, reprisal or retaliation in violation of this policy should immediately report the matter to the supervisor of the employee engaging in the harassing or retaliatory conduct (if known), their supervisor, or to local civilian personnel flight, or to the command designee. Employees who witness harassing or retaliatory conduct directed toward others should report the matter to the supervisor of the offending employee (if known), their supervisor, local civilian personnel flight, or command designee.

7.8. Filing A Complaint . An employee or applicant who believes that he or she has been the subject of harassment because of race, color, national origin, age (40 or older), religion, sex, pregnancy, disability, genetic information, or reprisal for previous Equal Employment Opportunity Commission (EEOC) activity and wishes to seek relief, may file a complaint by contacting their servicing EEO Office no later than 45 calendar days from the date of the alleged discriminatory act in accordance with Reference (d). All other complaints (i.e., those not based on a protected characteristic actionable before the EEO Commission) of harassment should be filed under either the administrative grievance or negotiated grievance procedures (NGPs) where appropriate. Non-EEO complaints or grievances made under this instruction do not replace, substitute, or otherwise

satisfy the separate obligations of an EEO complaint, administrative grievance, negotiated grievance, Merit Systems Protection Board (MSPB) appeal, or other statutory process. Employees will be notified of the disposition of their complaint. **(T-0)**

7.9. Management Response to Reports of Harassment, Reprisal or Retaliation. A supervisor or manager who suspects or becomes aware of alleged harassing or retaliatory conduct involving subordinates within his or her chain-of-command are to contact the servicing civilian personnel flight, command designee, or servicing legal office as soon as possible for advice and guidance.

7.9.1. Supervisors or managers are to promptly initiate an investigation into the allegations of harassment or retaliatory conduct involving subordinates within their chain-of-command. **(T-0)**

7.9.2. An investigation is to be initiated within 10 calendar days of receipt of a harassment allegation.

7.9.3. The investigation must result in a record sufficient to support corrective measures and/or disciplinary action taken, or to indicate there is not sufficient evidence to support corrective measures and/or disciplinary action. The investigator must contact the servicing legal office for guidance on how to conduct the investigation. This includes how to take sworn statements; accessing and obtaining appropriate personnel information and records; maintaining confidentiality during the course of the investigation; and meeting all labor relations obligations while conducting the inquiry. **(T-0)**

7.10. Notifying Appropriate Officials of Reported Harassment, Reprisal or Retaliation. A supervisor or manager who becomes aware of alleged harassing or retaliatory conduct involving employees outside of his or her chain-of-command must then report, as soon as possible, to one of the following officials: the harassing employee's supervisor/Director/Commander; or if the alleged harassment involves the supervisor or Director or Commander in the direct chain of command of the harassed employee, the Commander/Director, local civilian personnel flight designee, command designee or servicing legal office; or the alleged victim's supervisor and Director or Commander. **(T-0)**

7.10.1. Supervisors, managers, civilian personnel, command designee or servicing legal office who becomes aware of harassing or retaliatory conduct within their chain-of-command must notify the Commander/Director, civilian personnel flight designee, command designee or servicing legal office as soon as possible. This notice must include the specific allegations, the parties involved, and any steps taken, in response to the report. **(T-0)**

7.10.2. When a report is made directly to the Commander/Director, civilian personnel flight, command designee, or servicing legal office, he/she is then responsible to:

7.10.2.1. Immediately acknowledge receipt of the report.

7.10.2.2. Notify the appropriate official in the Office(s) implicated in the report; and

7.10.2.3. Recommend how the investigation should proceed.

7.11. Performing Investigations. The Commander/Director, civilian personnel flight or command designee, in coordination with the servicing legal office, advise supervisors and management officials on the appropriate course of action. It is important that all investigations be thorough, impartial, and completed in a timely manner appropriate to the allegation(s).

7.12. Allegations Against a Director, Commander, or Similar High-ranking Official. In the event that a Director, Commander, or similar high-ranking official is implicated in alleged harassing or retaliatory conduct, the Commander/Director, civilian personnel flight designee or command designee, in coordination with the servicing legal office or designee, is responsible for conducting the preliminary inquiry and directing any further investigation, if warranted.

7.13. Corrective Measures and/or Disciplinary Action. If the investigation or inquiry determines that harassing or retaliatory conduct occurred, the findings must be reported to the Director or Commander above the offending individual for necessary action. The appropriate supervisory or management officials in the offending employee's chain of command will ensure appropriate corrective measures and/or disciplinary action is taken. **(T-2)**

7.14. Maintaining Confidentiality, Keeping Records, and Monitoring Procedural Compliance. All reports of harassing or retaliatory conduct and related information are to be maintained on a confidential basis to the extent possible, consistent with the requirements of the applicable complaint process, adverse action procedures, or investigative practices; however, confidentiality is not guaranteed.

7.15. Writing Reports and Maintaining Records. Consistent with the requirements regarding other alleged misconduct, a written report must be made regarding harassment allegations, including the resolution of the complaint, with a copy provided to the local civilian personnel flight for record retention. **(T-0)**

7.15.1. It is important for reports to identify the individual implicated, the conduct involved, and the corrective measures and/or disciplinary action taken, if any.

7.15.2. Written reports may also include a detailed description of the investigation, an explanation of any conclusions, the reasoning for any corrective measures and/or disciplinary action issued, and documents or other evidence from the investigation.

7.15.3. Reports are to be maintained in a secure location and protected in accordance with the Privacy Act of 1974 and AFI 33-332. **(T-0)**

7.16. Directors, supervisors, and managers are expected to comply with the requirements of this instruction. This includes monitoring the work environment following a report alleging a violation to ensure there are no further violations, reprisal or retaliation against individuals who have reported harassment or participated in the investigation.

7.17. Conclusion of an Investigation. Once an investigation is completed, the appropriate supervisor or management official will notify the employee(s) who filed the complaint or were subjected to harassment or reprisal or retaliation based on the findings of the investigation. For individuals who allege they have been harassed, provide appropriate notification on the status of a response to the allegation(s), including when the supervisor determines its response will be completed. **(T-0)**

7.18. Filing a Statutory Complaint, Grievance under a Negotiated Procedure, or MSPB Appeal. Reporting harassment, reprisal or retaliation to a supervisor or management official or filing a complaint does not satisfy the filing requirements for an EEO complaint, union grievance, MSPB appeal, or other procedures and obtaining remedies pursuant to them, nor does it delay the time limits for initiating those procedures. Thus, an employee who chooses to pursue statutory or collective bargaining remedies for harassment, reprisal or retaliation may select one of the available forums as follows:

7.18.1. For an EEO complaint pursuant to 29 CFR § 1614, *Federal Sector Equal Employment Opportunity*, as required in 29 C.F.R. § 1614.105(a)(1), *Pre-complaint Processing*, contact local EEO office within 45 calendar days of the date of the matter alleged to be discriminatory, or in the case of a personnel action, within 45 calendar days of the effective date of the action.

7.18.2. For grievances filed under a NGP, file a written grievance in accordance with the provisions of the associated CBA. Bargaining unit employees should review their applicable NGP to determine if the NGP is the appropriate vehicle for their complaint.

7.18.3. For an appeal to the MSPB pursuant to 5 CFR § 1201, *Practices and Procedures,* as required in 5 CFR § 1201.22, *Filing an Appeal and Responses to Appeals*, file a written appeal with the Board within 30 calendar days of the effective date of an appealable adverse action as defined in 5 CFR § 1201.3, *Appellate Jurisdiction,* or within 30 calendar days of the date of receipt of the agency's decision, whichever is later.

GWENDOLYN R. DeFILIPPI, SES, DAF
Acting Assistant Secretary of the Air Force for
Manpower and Reserve Affairs

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

5 USC, *Civilian Employees*

Title 7, of the Civil Rights Act of 1965

10 USC, *Defense Civilian Intelligence Personnel System or Cyber Excepted Service employees, and Defense Intelligence Senior Executive Service and Senior Leader employees of both the United States Air Force and the United States Space Force*

32 USC, *Air National Guard Technicians*

5 CFR Part 752, *Adverse Actions*

5 CFR Part 1201, *Practices and Procedures*

5 CFR § 1201.3, *Appellate Jurisdiction*

5 CFR § 1201.22, *Filing an Appeal and Responses to Appeals*

5 CFR Part 2635, *Standards of Ethical Conduct for Employees of the Executive Branch*

5 CFR § 2635.702, *Use of Public Office for Private Gain*

5 CFR Part 3110, 2018 *Edition*

5 CFR Part 3601, *Supplemental Standards of Ethical Conduct for Employees of the Department of Defense*

5 CFR Section 3601.107, *Prior Approval for Outside Employment and Business Activities*

29 CFR Part 1614, *Federal Sector Equal Employment Opportunity*

29 CFR § 1614.105(a)(1), *Pre-complaint Processing*

DoD 5500.07-R, *The Joint Ethics Regulation,* August 30, 1993

DoDI 1020.03, *Harassment Prevention and Response in the Armed Forces,* 8 February 2018

DoDI 1020.04, *Harassment Prevention and Responses for DoD Civilian Employees,* 30 June 2020

DAFPD 36-1, *Appropriated Funds Civilian Management and Administration,* 29 August 2023

AFI 24-301, *Ground Transportation,* 22 October 2019

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 33-332, *Air Force* Privacy and Civil Liberties Programs, 10 March 2020

DAFI 34-301, *Department of the Air Force Morale, Welfare, and Recreation (MWR) Programs and Use Eligibility,* 24 July 2023

AFI 36-128, *Pay Setting and Allowances*, 17 May 2019

DAFI 36-148, *Discipline and Adverse Actions of Civilian Employees,* 27 September 2022

DAFI 90-301, *Inspector General Complaints Resolution*, 4 January 2024

AFMAN 44-198, *Air Force Civilian Drug Demand Reduction Program,* 24 January 2019

DAFPD 36-27, *Equal Opportunity (EO),* 30 May 2024

DAFI 36-2670, *Total Force Development*, 25 June 2020

DAFI 36-2710, *Equal Opportunity Program*, 23 May 2024

DAFI 36-2903, *Dress and Personal Appearance of United States Air Force* Personnel, 29 February 2024

AFI 36-2909, *Air Force Professional Relationships and Conduct,* 14 November 2019

DAFI 64-117, *Government Purchase Card Program*, 19 May 2022

DAFMAN 90-161, *Publishing Processes and Procedures,* 17 October 2023

Prescribed Forms

DAF Form 3902, *Application and Approval for Off-Duty Employment*

Adopted Forms

DAF Form 679, *Department of the Air Force Publication Compliance Item Waiver Request/Approval*

DAF Form 847, *Recommendation for Change of Publication*

OGE Form 450, *Confidential Financial Disclosure Report*

OGE Form 278, *Public Financial Disclosure Report*

Abbreviations and Acronyms

AF—Air Force

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPC—Air Force Personnel Center

AFPD—Air Force Policy Directive

CCMD—Combatant Command

CFR—Code of Federal Regulations

CPS—Civilian Personnel Section

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFPD—Department of the Air Force Policy Directive

DCIPS—Defense Civilian Intelligence Personnel System

DISES—Defense Intelligence Senior Executive Service

DoDI—Department of Defense Instruction

FLDCOM—Field Command

HSB—Human Resource Management Strategic Board

IAW—In Accordance With

MAJCOM—Major Command

OPR—Office of Primary Responsibility

USSF—United States Space Force

Office Symbols

AF/A1—Deputy Chief of Staff of the Air Force, Manpower, Personnel and Services

AF/A1C—Department of the Air Force/Directorate of Civilian Force Management

AF/DP—Air Force Personnel Center, Directorate of Personnel Programs

AF/MR—Air Force Manpower Reserve Affairs

AFPC/DPP—Air Force Personnel Center, Directorate of Personnel Programs

HQ USAF/RE—Chief of Air Force Reserve

NGB/CF—Director of the Air National Guard

SAF/MR—Secretary of the Air Force, Manpower and Reserve Affairs

SF/S1—Chief of Space Operations for Personnel

Terms

Indebtedness—A just financial obligation includes any financial obligation acknowledged by the employee or reduced to judgment by a court or other proper authority.

Relative—An individual who is related to the employee as father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half-brother, or half-sister in accordance with Title 5, Code of Federal Regulations, Part 310 (5 C.F.R. Part 310).